

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

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HECTOR DAVID,

Plaintiff

- against -

**THE CITY OF NEW YORK,
POLICE OFFICER GENE RYERSON
(Shield No. 12701) of the 43rd Precinct and
SERGEANT RYAN GILLIS
(Shield No. 5086) of the 43rd Precinct,**

Defendants.

Index No. _____

Purchased _____

Plaintiff designates Bronx
County as the place of trial

The basis of the venue is
where the tort arose

SUMMONS

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
March 3, 2015



JEFFREY W. RIZZO, ESQ.

Attorney for Plaintiff
930 Grand Concourse, Suite 1E
Bronx, New York 10451
(718) 618-7509

Defendant's Address:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

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COUNTY CLERK
BRONX COUNTY

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**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY**

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HECTOR DAVID,

Plaintiff,

**Index No.
Verified Complaint**

- against -

**THE CITY OF NEW YORK,
POLICE OFFICER GENE RYERSON
(Shield No. 12701) of the 43rd Precinct and
SERGEANT RYAN GILLIS
(Shield No. 5086) of the 43rd Precinct,**

Defendants.
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Plaintiff HECTOR DAVID, by his attorney JEFFREY W. RIZZO, ESQ.,
principal, complaining of the Defendants, respectfully shows to this Court and alleges the
following upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff HECTOR DAVID ("MR. DAVID") was a resident of Bronx County, City and State of New York.

2. At all times hereinafter mentioned, Defendant THE CITY OF NEW YORK ("CITY") was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.

3. At all times hereinafter mentioned, Defendant POLICE OFFICER GENE RYERSON (Shield No. 12701) of the 43rd Precinct (hereinafter RYERSON), was and still is a Police Officer employed by the Defendant CITY and the NEW YORK CITY POLICE DEPARTMENT ("NYPD").

4. On and prior to December 3, 2013, RYERSON was employed by Defendant CITY and the NYPD and was assigned in the Borough and County of Bronx, City and State of New York.

5. The actions of RYERSON described herein were performed within the scope of his employment and authority and while he acted as an agent, servant and employee of Defendants CITY and NYPD.

6. At all times hereinafter mentioned, Defendant SERGEANT RYAN GILLIS (Shield No. 5086) of the 43rd Precinct (hereinafter GILLIS), was and still is a Police Officer employed by the Defendant CITY and the NEW YORK CITY POLICE DEPARTMENT ("NYPD").

7. On and prior to December 3, 2013, GILLIS was employed by Defendants CITY and NYPD and was assigned in the Borough and County of Bronx, City and State of New York.

8. The actions of GILLIS described herein were performed within the scope of his employment and authority and while he acted as an agent, servant and employee of Defendants CITY and NYPD.

BACKGROUND

9. On or about December 3, 2013, RYERSON AND GILLIS, acting as agents, servants and employees of Defendants CITY and NYPD, without just cause or provocation, intentionally and falsely accused MR. DAVID of having committed the crime of Assault in the Second Degree (P.L. § 120.05) and related charges.

10. On or about December 3, 2013, Defendants, their agents, servants and/or employees, intentionally placed MR. DAVID under arrest without just cause or provocation and with reckless and negligent disregard for the truth.

11. On or about December 4, 2013, a criminal complaint was issued at the directive of Defendants, and a criminal action against MR. DAVID was commenced.

12. On December 5, 2013, MR. DAVID was arraigned in Criminal Court – Bronx County and released on his own recognizance. The case was adjourned to January 27, 2014.

13. After numerous court appearances, on or about November 19, 2014, MR. DAVID made a court appearance during which all charges were dismissed on application of the District Attorney's Office.

14. As a result of the treatment of MR. DAVID by the Defendants, MR. DAVID was denied liberty by being falsely arrested and imprisoned for approximately forty-eight (48) hours.

15. MR. DAVID suffered emotional injuries due to the conduct of the Defendants. As a result of being falsely arrested and detained for forty-eight (48) hours, MR. DAVID suffered humiliation, fear for his safety and other emotional distress.

PROCEDURAL POSTURE

16. On March 3, 2014, Plaintiff served a Notice of Claim in writing sworn to on his behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

17. On December 10, 2014, Plaintiff served a Supplemental Notice of Claim in writing sworn to on his behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

18. More than thirty days have elapsed since service of said notice, and Defendant CITY has failed to pay or adjust the claim.

19. This action has been commenced within one year and ninety days after the cause of actions of Plaintiff accrued.

20. Plaintiff is waiting for the CITY to reschedule a "50-h Hearing". Plaintiff submitted the request to reschedule the hearing on December 3, 2014.

FIRST CAUSE OF ACTION: FALSE ARREST

21. Paragraphs 1-20 are incorporated by reference as fully set forth herein.

22. On December 3, 2013 at approximately 10:50 p.m., in the vicinity of Odell Street and St. Raymond Avenue in Bronx County, Defendants RYERSON AND GILLIS wrongfully touched, grabbed, handcuffed and seized MR. DAVID, in an excessive manner about his person, causing MR. DAVID physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff, seize or touch Plaintiff. MR. DAVID was aware of his arrest and confinement as described in paragraphs 1-20, and he did not consent to that arrest or confinement, nor was it privileged by law.

23. As a result of being falsely arrested by the Defendants, MR. DAVID sustained multiple injuries. He was denied liberty and the ability to enjoy life for approximately forty-eight (48) hours. He also suffered emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

SECOND CAUSE OF ACTION: FALSE IMPRISONMENT

24. Paragraphs 1-23 are incorporated by reference as though fully set forth herein.

25. The Defendants, their agents, servants and employees, arrested and confined MR. DAVID, as described in paragraphs 1-23, and intended to confine MR. DAVID. MR. DAVID was conscious of his confinement and did not consent to it. Moreover, the confinement was not privileged or authorized by any warrant, order, or other legal right.

26. As a result of being falsely imprisoned by the Defendants, MR. DAVID sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

THIRD CAUSE OF ACTION: ABUSE OF PROCESS

27. Paragraphs 1-26 are incorporated by reference as though fully set forth herein.

28. In arresting MR. DAVID, RYERSON AND GILLIS, acting in their capacity as agents, servants and employees of Defendants CITY and NYPD, was motivated by an ulterior purpose to do harm, without justification or economic or social excuse.

29. In arresting MR. DAVID, RYERSON AND GILLIS, acting in their capacity as agents, servants and employees of Defendants CITY and NYPD, sought either a detriment to MR. DAVID or a collateral advantage to the Defendants that is outside of the legitimate ends of making an arrest.

30. As a result of the abuse of process by the Defendants, MR. DAVID sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

FOURTH CAUSE OF ACTION: MALICIOUS PROSECUTION

31. Paragraphs 1-30 are incorporated by reference as though fully set forth herein.

32. On or about November 19, 2014, when Plaintiff's case was dismissed, the Defendants deliberately and maliciously prosecuted Plaintiff, an innocent man without any probable cause whatsoever, by filing or causing a complaint to be filed in the Criminal Court of the City of New York, Bronx County, for the purpose of falsely accusing Plaintiff of violations of the Penal Law of the State of New York.

33. The Defendants, their agents, servants or employees failed to take reasonable steps to stop the prosecution of Plaintiff and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's Office to induce prosecution of Plaintiff.

34. The commencement of these criminal proceedings under Docket No. 2013BX069609 was malicious and began in malice and without probable cause, so that the proceedings could succeed by the Defendants.

35. As a result of being maliciously prosecuted by the Defendants, MR. DAVID was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution.

FIFTH CAUSE OF ACTION ASSAULT AND BATTERY

36. Paragraphs 1-35 are incorporated by reference as though fully set forth herein.

37. On December 3, 2013 at approximately 10:50 p.m., in the vicinity of Odell Street and St. Raymond Avenue in Bronx County, Defendants RYERSON AND GILLIS along with other New York City police officers, wrongfully touched, grabbed, pushed, punched, kicked, handcuffed and seized MR. DAVID, in an excessive manner about his person, causing MR. DAVID physical pain and mental suffering.

38. That on or about December 3, 2013, and while in the custody of the defendants in the County of Bronx, City of New York, the Plaintiff MR. DAVID was intentionally touched, grabbed, pushed, punched, kicked, assaulted, violated, humiliated and handcuffed by RYERSON AND GILLIS, along with other New York City police officers who were acting within the scope of their employment and authority in such a manner as to knowingly cause injury to plaintiff.

39. That on or about December 3, 2013, RYERSON AND GILLIS, along with other New York City police officers their agents, servants and employees, acting as agents and on behalf of the CITY and NYPD within the scope of their employment, did intentionally, willfully and maliciously assault and batter MR. DAVID in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to MR.

DAVID and their act caused apprehension of such contact in the plaintiff, and in a hostile and/or offensive manner intentionally touched the plaintiff and/or made offensive bodily contact to MR. DAVID and caused such battery in and about his chest, body and limbs. At no time did MR. DAVID consent to the aforesaid assault and battery.

40. While not conceding that said arrest was lawful or made upon probable cause, the aforesaid intentional assault and battery during the arrest was excessive. The excessive force used, including but not limited to the pushing, shoving, grabbing punching and kicking of MR. DAVID, was an assault and battery beyond that which was necessary to make the arrest.

41. That by reason of the aforesaid intentional assault and battery committed by the defendants, their agents, servants and employees, in particular RYERSON AND GILLIS, along with other New York City police officers acting within the scope of their employment and authority and without any probable or reasonable cause, MR. DAVID suffered bodily injury in and about his face, head, body and limbs and suffered conscious pain and suffering, and that he was otherwise damaged.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: Bronx, New York
March 3, 2015

Yours, etc.,



JEFFREY W. RIZZO, ESQ.
Attorney for Plaintiff
930 Grand Concourse, Suite 1E
Bronx, NY 10451
718-618-7509

VERIFICATION

STATE OF NEW YORK)
COUNTY OF BRONX) ss:

HECTOR DAVID, being duly sworn, deposes and states that he is the individual Claimant in the within action; that he has read the forgoing Claim and knows the contents thereof; that the same is true to his own knowledge, except as to the matters therein stated to be alleged upon information and belief; and that as to those matters he believes them to be true.

Hector David
HECTOR DAVID

Sworn to before me, this 3rd day of March, 2015.

[Signature]
Notary Public

ERIC D. LEVY
Notary Public, State of New York
Qualified in Kings County
Reg. #02LE6258970
My Comm. Exp. April 9, 2016

CERTIFICATION

I, JEFFREY W. RIZZO, ESQ., certifies, that, to the best of my knowledge, information and belief, the presentation of the paper is not frivolous and, where the paper is an initiating pleading, that the matter was not obtained through illegal conduct or, if it was, that the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing fees and that the matter was not obtained in violation of DR 7-111. (22 N.Y.C.R.R. 130-1.1-a[b]).



JEFFREY W. RIZZO, ESQ.